



CHAPTER 1.

An Act to confer further powers upon the Blyth and Cowpen Gas Company and to enable that Company to acquire the undertaking of the Bedlington Gas Light Company Limited. A.D. 1913.
[15th August 1913.]

WHEREAS by the Blyth and Cowpen Gas Act 1887 (in this Act called "the Act of 1887") the Blyth and Cowpen Gas Light Company Limited were dissolved and the proprietors therein were reincorporated by the name of the Blyth and Cowpen Gas Company (in this Act called "the Company") and were empowered to supply gas within the townships of Newsham and South Blyth and Cowpen all in the county of Northumberland : 50 & 51 Vict.
c. lxxxviii.

And whereas by the Act of 1887 the capital of the Company was fixed at £37,500 (including the capital of £17,500 then already raised) and the Company were empowered to borrow on mortgage of the undertaking any sum or sums not exceeding £5,000 in respect of the original capital of the limited company and one-fourth part of the amount of the additional capital by that Act authorised :

And whereas the whole of the share capital of the Company authorised by the Act of 1887 was issued and expended and was raised as follows :—

By the issue of one thousand seven hundred and fifty fully paid-up ordinary shares of ten pounds each bearing dividend at the rate of ten per centum per annum ;

By the creation and issue of one thousand three hundred and thirty-six ordinary shares of ten pounds each bearing dividend at the rate of seven per centum per annum

[Price 1s.]

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being the number of shares issued to raise including the premiums the sum of nineteen thousand nine hundred and ninety-one pounds :

4 Edw. 7.
c. xxix.

And whereas in pursuance of provisions contained in the Blyth and Cowpen Gas Act 1904 (in this Act called "the Act of 1904") the ordinary shares of the Company were consolidated and converted into one stock of the nominal value of £53,704 bearing a uniform dividend (subject to the provisions of the Act of 1887 and of the Act of 1904) at the rate of five per centum per annum :

And whereas by the Act of 1904 the Company were authorised to raise additional capital not exceeding in the whole £100,000 and of that amount they have raised the sum of £14,469 10s. 3d. by the creation and issue of £12,000 of the ordinary stock of the Company :

And whereas by the Act of 1904 the Company were authorised forthwith after the passing of that Act to borrow on mortgage of their undertaking in respect of the then existing capital of £37,500 any sums not exceeding in the whole £13,000 and in respect of the additional capital of £100,000 authorised by the Act of 1904 any sum or sums not exceeding in the whole one-third part of the amount at the time actually raised of such additional capital :

And whereas the Company have not borrowed upon mortgage of the undertaking nor have they issued any debenture stock :

And whereas it is expedient that the limits of the Company for the supply of gas should be extended so as to include the urban district of Bedlingtonshire and the parish of Bedlington in the county of Northumberland :

And whereas the Bedlington Gas Light Company Limited (hereinafter referred to as "the Bedlington Company") are supplying gas within parts of the said urban district and parish but without any statutory authority to do so :

And whereas the Company have agreed with the Bedlington Company for the acquisition by the Company of the undertaking carried on by the Bedlington Company and the lands works and property held and used in connection therewith and it is expedient that the agreement between the Company and the Bedlington Company of which a copy is set out in the Second Schedule to this Act should be confirmed as by this Act provided :

And whereas it is expedient that the name of the Company should be changed as hereinafter provided: A.D. 1913.

And whereas it is expedient that the other provisions hereinafter contained should be made:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Blyth and Cowpen Gas Act 1913. Short title.

2. The following Acts and parts of Act so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act:— Incorporation of Acts.

The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement; and

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871.

3. In the application of the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 to the Company and to their undertaking those Acts shall be deemed to be modified as follows:— Modifying Gasworks Clauses Acts.

(A) Section 13 of the said Gasworks Clauses Act 1847 in its application to the Company shall be read as if the words "or any premises" were inserted after the words "private building":

(B) Section 35 of the same Act in its application to the Company shall be read as if the words from "in case the whole" down to "have been paid" were omitted therefrom:

(c) Notwithstanding anything contained in the Gasworks Clauses Act 1871 the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any lands acquired by the Company by agreement whether under this Act the Act of 1887 or the Act of 1904.

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Interpretation.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act the expression "the Company" means the Blyth and Cowpen Gas Company.

Extension of limits of supply.

5.—(1) From and after the passing of this Act the existing limits of supply of the Company shall be extended so as to include the urban district of Bedlingtonshire and the parish of Bedlington in the county of Northumberland.

(2) The Company shall have and may exercise within the said urban district and parish all and the like powers privileges and authorities for and in relation to the supply of gas and subject to the provisions of this Act shall be subject to all and the like duties liabilities and obligations in respect thereof as they for the time being have and are subject to within the remainder of their limits of supply.

(3)—(A) The Company may charge for gas supplied by them within the area edged pink on the signed plan a price exceeding by not more than one shilling per thousand cubic feet the price for the time being charged by the Company for gas supplied by them within the area edged yellow on the signed plan :

Provided that if and whenever in any year the total quantity of gas supplied by the Company within the said area edged pink exceeds ten million cubic feet the difference in price of one shilling per thousand cubic feet of gas supplied by the Company within that area shall in the next following year be reduced by one penny in respect of each one million five hundred thousand cubic feet or a fractional part of one million five hundred thousand cubic feet by which the quantity of gas supplied by the Company within the said area during such preceding year exceeded the quantity of ten million cubic feet :

Provided also that the Company shall not in any case be under any obligation to charge for gas supplied by them within the said area edged pink a less price per thousand cubic feet than sixpence in excess of the price for the time being charged by them in the said area edged yellow :

(B) The Company may charge for gas supplied by them within the area edged blue on the signed plan a price exceeding

by not more than one shilling and ninepence per thousand cubic feet the price for the time being charged by the Company for gas supplied by them within the area edged yellow on the signed plan : A.D. 1913.

The signed plan referred to in this subsection means the plan of which four copies have been signed by the Right Honourable John Henry Whitley the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which signed copies one has been deposited at the Private Bill Office of the House of Commons one at the Office of the Clerk of the Parliaments in the House of Lords one at the office of the Company and one at the office of the Bedlingtonshire Urban District Council.

6. Notwithstanding anything contained in the Act of 1887 the standard price to be charged by the Company for gas supplied by them within the urban district of Blyth shall be four shillings per thousand cubic feet and that price shall be deemed to be the standard price for the purposes of section 37 (Dividend dependent upon price charged) of the Act of 1887. Standard price.

7.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers through any other kind of meter or by any other method of supply. Charge for gas supplied by means of prepayment meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection

A.D. 1913. and other costs incurred by the Company in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

For protec-
tion of Bed-
lingtonshire
Urban Dis-
trict Council.

8. Notwithstanding anything in this Act or the Act of 1887 or the Act of 1904 or any enactment incorporated therewith respectively the following provisions for the protection of the Bedlingtonshire Urban District Council (in this section referred to as "the council") shall unless otherwise agreed in writing between the Company and the council have effect:—

- (1) The Company shall not interfere with the structural part of any bridge vested in the council without the consent in writing of the council which consent shall not be unreasonably withheld and may be given upon such conditions as the council may reasonably determine:
- (2) In the application to any such bridge or the approaches thereto of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 8 of that Act shall (except in cases of emergency) be not less than seven days instead of three days:
- (3) The Company shall not open or break up at any one time a greater consecutive length of any street or road repairable by the council than one hundred yards where only one cart can pass at the side of the trench and they shall leave a clear space of fifty yards between every two consecutive openings:
- (4) The Company shall pay to the council the reasonable expenses incurred by them in relation to the superintendence by the council or their surveyor of any works to be done by the Company under the provisions of this section or of the Gasworks Clauses Acts 1847 and 1871:
- (5) If any difference shall arise between the council and the Company under the foregoing provisions of this section the same shall be referred to and determined

by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference:

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(6) Subject to the provisions of this Act the terms and conditions upon and subject to which the Company will lay on or supply new services installations or fittings or execute similar works within the urban district of Bedlingtonshire shall not be less favourable to the consumers of gas within that district than the terms and conditions upon and subject to which the same are laid on supplied or executed in the urban district of Blyth:

(7) If the Company shall allow discounts to consumers of gas within the urban district of Blyth they shall allow discounts at the same rate and subject to similar conditions to consumers of gas within the urban district of Bedlingtonshire.

9. The following provisions for the protection of the North Eastern Railway Company (hereinafter called "the railway company") shall unless otherwise agreed in writing between the Company and the railway company apply and have effect:—

For protection of North Eastern Railway Company.

(1) All mains and pipes to be laid by the Company under the powers of this Act over or under any bridge of the railway company shall be carried over or under the same in such a way as not to interfere with the structure of any such bridge and all other mains and pipes laid or proposed to be laid or maintained by the Company under the powers of this Act in any road which shall cross any railway of the railway company on the level shall be laid under the same so as to cause as little interference as may be with such railway and so as to cause no interruption to the passage or conduct of the traffic thereon:

(2) In laying and maintaining any mains pipes or other works over upon or across or under or adjoining any work of the railway company the Company shall execute their works under the direction and superintendence (if such direction and superintendence be given) and to the reasonable satisfaction of the engineer of the railway company and in accordance

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with plans drawings and specifications previously submitted to and approved by him. Provided that if within one month from the submission of such plans drawings and specifications as aforesaid the said engineer of the railway company shall not have signified his disapproval thereof he shall be deemed to have approved thereof and if any difference shall arise upon such plans drawings and specifications the same shall be determined by arbitration as hereinafter provided and the Company shall pay and make good to the railway company all loss damages and expenses which the railway company shall sustain or be put to by or in consequence of the laying maintenance or user of the said mains pipes and other works or by or in consequence of the bursting of or any other accident to any main or pipe of the Company not due to the act or default of the railway company :

- (3) If at any time it is found necessary in order to enable the railway company to carry out any alterations or extensions of their railway or works under their existing powers that the position of such mains or pipes shall be altered the Company shall on receiving notice in writing from the railway company so to do at their own cost with all despatch alter the position of the same so far as may be reasonably necessary to enable the railway company to carry out such alterations or extensions and the provisions of this section shall apply to the said mains or pipes in their altered position :
- (4) If the railway company give to the Company not less than seven clear days' notice in writing that they themselves desire to construct so much of the works or to carry out so much of the alterations of such mains or pipes as will affect any railway or work belonging to them the railway company may themselves execute such works and alterations and recover the reasonable cost thereof from the Company :
- (5) Any difference arising between the Company and the railway company under this section shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to the reference.

10. The Company may upon the lands described in the First Schedule to this Act continue and use the gasworks thereon or on any part thereof and may erect and maintain gasworks retort houses retorts gasholders purifiers mains pipes machinery and other apparatus works and conveniences and may do such acts as they may think fit for the manufacture conversion and supply of gas and residual products obtained in the manufacture of gas and on those lands may make store and convert gas and residual products.

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Powers as to construction and maintenance of gasworks &c. on lands described in First Schedule.

11. The Company may for the purposes of their undertaking purchase or take on lease and hold (by agreement but not otherwise) in addition to the lands described in the First Schedule to this Act and the lands now held by them under the powers of the Act of 1887 and the Act of 1904 any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of or connected with their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Act of 1887 the Act of 1904 and this Act.

Power to purchase lands by agreement.

12. If and when the Company become the owners of so much of the footpath leading from Blyth to Cowpen Quay as is included within the limits of the land thirdly described in the First Schedule to this Act it shall be lawful for the Company to stop up the portion of footpath hereinbefore referred to and as from such stopping up all public rights of way (if any) thereover shall cease and be extinguished.

Stopping-up portion of footpath.

13. The agreement set forth in the Second Schedule to this Act dated the third day of April one thousand nine hundred and thirteen and made between the Bedlington Company of the one part and the Company of the other part is hereby confirmed and made binding upon the parties thereto and may be carried into effect by them respectively.

Confirmation of agreement with Bedlington Company.

14.--(1) All shares or stock created by the Company after the passing of this Act under the powers of section 7 (Power to raise additional capital) and section 21 (Debenture stock) of the Act of 1904 shall be issued in accordance with the provisions of this section and sections 12 to 15 of the Act of 1904 are hereby repealed.

Unissued capital and debenture stock to be sold by auction or tender.

A.D. 1913. this Act the ordinary meetings of the Company shall be held in the month of March in every year or at such other time as shall be appointed for that purpose by a resolution passed at a general meeting and the directors may declare and pay a half-yearly dividend payable out of the profits of the Company for any half-year ending on the thirtieth day of June without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the authorised yearly rate of dividend upon any stock or shares of the Company.

Costs of Act.

19. All costs charges and expenses of and incident and preliminary to the applying for preparing obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act. A.D. 1913.

THE FIRST SCHEDULE.

LANDS ON WHICH THE COMPANY MAY MANUFACTURE GAS AND RESIDUAL PRODUCTS AND STORE GAS IN ADDITION TO THE LANDS ALREADY AUTHORISED TO BE USED FOR THOSE PURPOSES BY THE ACT OF 1887 AND THE ACT OF 1904.

Firstly All that piece or parcel of land containing by admeasurement 1,927 square yards or thereabouts situate at Bedlington in the parish of Bedlington and urban district of Bedlingtonshire in the county of Northumberland bounded on the east north and west by land now or late belonging or reputed to belong to John Clayton and on the south by a road over which the Bedlington Company have a right of way.

Secondly All that piece or parcel of land situate at Blyth in the parish and urban district of Blyth in the county of Northumberland containing in area 895 square yards bounded on the west side thereof by the works of the Company on the north by a footpath leading from Blyth to Cowpen Quay and on the south and east sides thereof by land belonging or reputed to belong to the Right Honourable Viscount Ridley.

Thirdly All that piece or parcel of land situate at Blyth in the parish and urban district of Blyth aforesaid and being part of the footpath leading from Blyth to Cowpen Quay hereinbefore referred to and comprising an area of 200 square yards or thereabouts bounded on the west and south sides thereof by the works of the Company on the north by land belonging or reputed to belong to the North Eastern Railway Company and on the east side by land belonging or reputed to belong to the said Right Honourable Viscount Ridley.

THE SECOND SCHEDULE.

AGREEMENT made the third day of April one thousand nine hundred and thirteen between the BEDLINGTON GAS LIGHT COMPANY LIMITED (hereinafter called "the vendors") of the one part and the BLYTH AND COWPEN GAS COMPANY (hereinafter called "the purchasers") of the other part.

Whereby it is agreed as follows:—

1. The vendors shall sell and the purchasers shall purchase as from the twentieth day of May one thousand nine hundred and eleven

Stamp.

Twenty
pounds ten
shillings.

A.D. 1913. the whole of the undertaking of the vendors as a going concern including lands buildings gasworks mains plant holders purifiers gas pipes valves and other apparatus and all chattels moneys (save and except the moneys payable by the purchasers to the vendors or their shareholders under the provisions of these presents) credits debts bills notes goodwill things in action contracts agreements securities and other assets together with the full benefit of all contracts and agreements and all other the real and personal property of the vendors whatsoever subject to any mortgages debts charges liens and incumbrances (if any) affecting the same or any part thereof.

2. The purchasers shall without delay promote a Bill in Parliament to obtain such statutory powers as they shall think fit including powers to acquire the said undertaking of the vendors upon the terms herein mentioned and for giving effect to this agreement and if such powers to acquire the said undertaking and for giving effect hereto are not obtained in the year one thousand nine hundred and thirteen this agreement shall be void The provisions of such Bill whereby such powers are proposed to be obtained shall be submitted to the vendors for their reasonable approval and the vendors by themselves their officers and servants shall at the expense of the purchasers support the Bill by evidence or otherwise if requested so to do by the purchasers.

If such Bill as aforesaid or any proceedings relating thereto shall be opposed before any Committee or Committees of the House or if the purchasers shall have notice of any intended opposition to such Bill and the purchasers shall be unable or on the ground of expense unwilling to contest such opposition the purchasers shall be at liberty at any time by notice in writing to the vendors to rescind this agreement and thereupon this agreement shall be void.

3. This agreement is subject to the approval of Parliament and to such alterations as shall be made by Parliament therein but in the event of either House of Parliament making any material alteration thereto it shall be competent to either party to withdraw from the same.

4. Part of the consideration for the sale shall be the payment in cash by the purchasers to the vendors on completion of the sum of seven thousand five hundred pounds and also a sum equal to the expenditure properly incurred by the vendors on capital account since the twentieth day of May one thousand nine hundred and eleven as appearing from the books and accounts of the vendors.

5. As further part of the consideration for the sale the purchasers shall pay all the debts and liabilities of or attaching to the undertaking other than in respect of the expenditure (if any) improperly incurred by the vendors on capital account between the date of these presents and the completion of the sale.

6. If during the last quarter of a year expiring on one of the usual A.D. 1913.
quarter days preceding the day of completion it shall be found that the
amount of unaccounted for gas whether due to leakages of pipes inaccurate
meters or any other cause exceeds twenty-four per cent. of the gas
supplied from the vendors' works the purchasers shall be entitled (by
way of compensation for the defective condition of the mains pipes
meters and other plant and apparatus) to an abatement or reduction
of the purchase money payable by them as aforesaid.

7. The vendors shall until the actual completion of the sale carry
on and manage their undertaking according to their usual course of
business and shall uphold maintain and keep the works and property
and deliver up the same in good working order as a going concern
and shall continue to keep proper accounts Provided always that the
vendors shall in the course of such management conform with the
reasonable requirements of the purchasers and shall not without the
previous consent in writing of the purchasers incur any expenditure on
capital account except such as may be necessary in the ordinary course
of the proper conduct of the affairs of the vendors and with the
intention of benefiting the undertaking.

8. The vendors shall on completion hand over to the purchasers
all books deeds agreements counsel's and engineer's opinions and
reports plans descriptions of works vouchers letters books and other
records of the business and proceedings of the vendors and originals
or copies of all other documents drafts or writings whether in the
possession of the vendors or of their solicitors agents or engineers
Provided always that from and after completion until the vendors shall
be finally wound up and dissolved the vendors and their liquidator or
liquidators shall have full access at all reasonable times to the registers
documents books and accounts relative to their undertaking for the
purpose of making up their accounts and for all other reasonable
purposes in relation to the winding up of the vendors.

9. The purchase shall be completed within two calendar months
after the Royal Assent shall have been given to the Bill to be promoted
by the purchasers as aforesaid when the vendors shall execute and do
at the expense of the purchasers all such assurances acts and things
as may reasonably be required by the purchasers for vesting in them
the property hereby agreed to be transferred and giving to them the
full benefit of these presents.

10. If from any cause all or any part of the consideration moneys
payable under clause 4 hereof shall not be paid within two calendar
months from such Royal Assent as aforesaid the purchasers shall pay
to the vendors interest at the rate of five per cent. per annum on the
moneys so remaining unpaid from the expiration of such two calendar
months until payment thereof.

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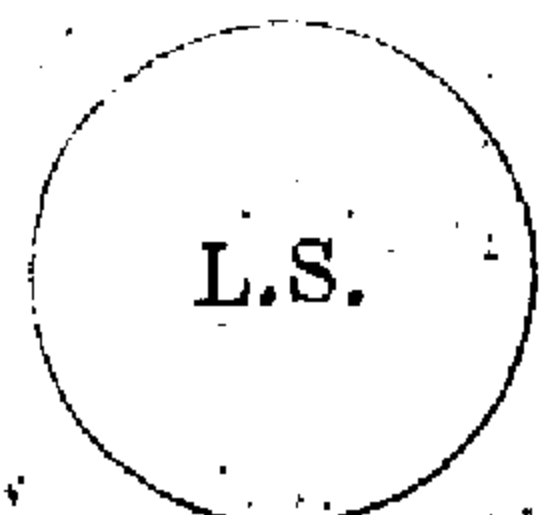
11. After the sale shall have been completed the vendors shall continue to subsist only for the purpose of winding up their affairs.

12. The vendors shall deduce a good and marketable title to the hereditaments comprised in the sale and shall within twenty-eight days after the date of these presents furnish to the purchasers a complete abstract of the title of the vendors thereto and shall when required by the purchasers produce to them or their agents the title deeds and other documents of title relating to the same.

13. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights and liabilities of either party hereunder the same shall be referred to one of His Majesty's counsel as arbitrator or failing him to an arbitrator to be appointed by the President of the Institute of Gas Engineers and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to a single arbitrator under that Act.

In witness whereof the vendors and the purchasers have caused their respective common seals to be hereunto affixed the day and year first before written.

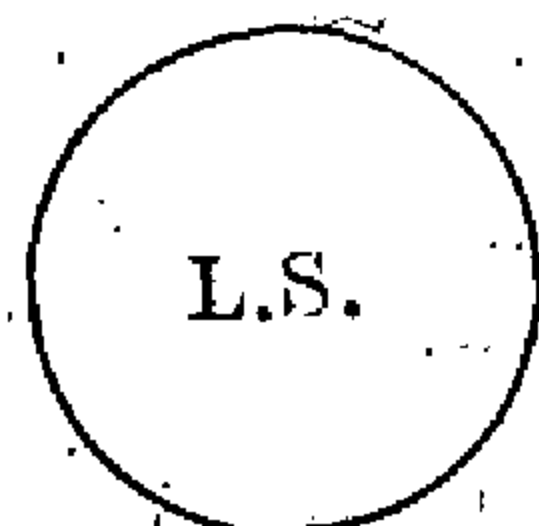
The common seal of the Bedlington Gas Light
Company Limited was hereunto affixed in the
presence of



R. G. DOBSON Chairman.

J. G. THORNTON Secretary.

The common seal of the Blyth and Cowpen Gas
Company was hereunto affixed in the presence of



R. G. DOBSON Chairman.

ANDREW C. FAWCETT Secretary.

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